Course 8

Software licences, open access, free source

Software licence

= contract (legal) between user and producer / seller

- 2 forms:
  - Document
  - Online
- Once / subscription



- Scope:
  - Protect copyright
  - States terms and conditions for use



Types of licences:

- Company
- Academic
- Personal (“home user”)



Types of licences:

Comercial

- Fixed period
- For software development

Trial

- Fixed period - short (7 / 10 / 30 days)
- Testing the product

Careware

- Right to use for donation purposes – ex. Editor *Vim*

Free license

Costumer request

- Includes maintenance

Free Licences

Public domain:

- No associated copyright
- Can be used by anyone
- Sometimes, source code not available

- SQLite
- youtube-dl

Freeware

- Proprietary software, available free for use
- Usually, cannot be modified, re-distributed, “reverse – engineered”
- Usually, source code not available

- Skype
- Adobe Acrobat Reader

Shareware

- Proprietary software, available free for use
- Allows copying, re-distribution
- Usually, source code not available

- winzip

	Freeware	Shareware
When?	1982, Andrew Fluegelman, PC-Talk	1982, Bob Wallace , PC-Write
License & copyright	- ∃ copyright - ∃ EULA (End User License Agreement)	- ∃ copyright
Features	free	- some free - Mostly - paid
Distribution	YES	depends
Modifiable	YES, modified software MUST be freeware	NO

Open source software

- Linux
- OpenOffice
- Firefox
- Etc.

- Developed by a community, company, person
- Used under free licence
- Allows access to source code
- 4 levels of freedom:
  - ❖ *Level 0*: use of the program in any purpose
  - ❖ *Level 1*: study the functioning of the program and be able to adapt
  - ❖ *Level 2*: re-distribute copies, for support
  - ❖ *Level 3*: improve the program, and make the improvements available to public

Open Source Initiative

- https://opensource.org
- 1998
- *We are the stewards of the Open Source Definition (OSD) and the community-recognized body for reviewing and approving licenses as OSD-conformant.*
- Scope: „to **educate** about and **advocate** for the benefits of open source and to **build bridges** among different constituencies in the open source community”



Free software

“Think of Free Software as free speech, not free beer”





Free = free as related to freedom

Free ≠ free of charge

Free software

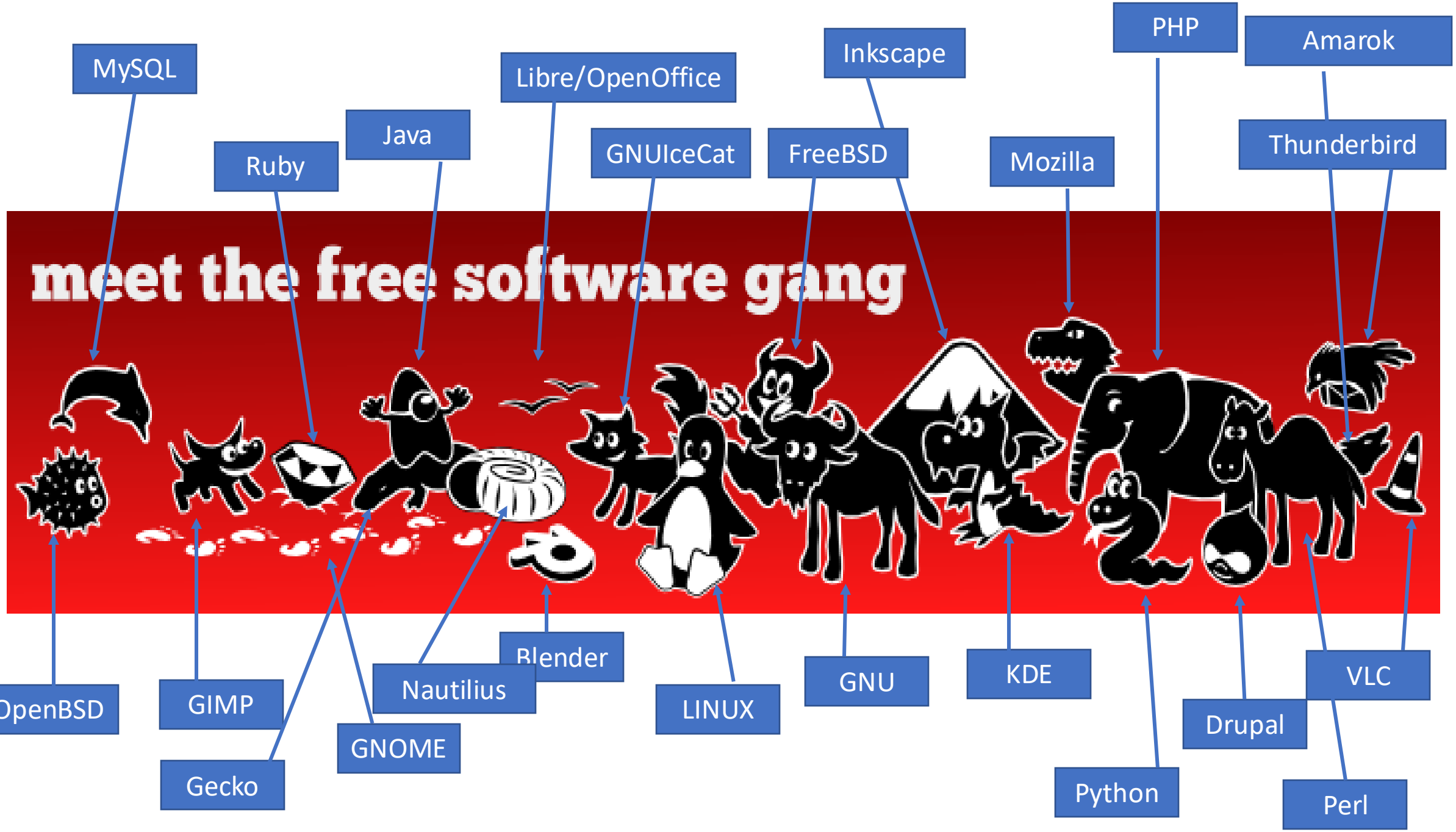
- Software that can be studied, modified, improved, distributed with minimal restrictions
- Cand be used, copied, distributed
- Usually is free, but not necessary
- Respects the 4 levels of freedom
- History:
  - 1983- MIT Artificial Intelligence Laboratory – GNU project
  - 1985 – Free Software Foundation - http://www.fsf.org



http://www.fsf.org/working-together/gang



LogoQuiz: how many of these logos do you recognise?


meet the free software gang
MySQL
Ruby
Java
Libre/OpenOffice
GNUIceCat
Inkscape
FreeBSD
Mozilla
PHP
Amarok
Thunderbird
OpenBSD
GIMP
Gecko
GNOME
Nautilius
Blender
LINUX
GNU
KDE
Python
Drupal
VLC
Perl

GNU General Public License

- guarantee your freedom to share and change all versions of a program--to make sure it remains free software for all its users
- free software, we are referring to freedom, not price
  - you have the freedom to **distribute copies** of free software (and charge for them if you wish), that you **receive source code** or can get it if you want it, that you **can change the software** or **use** pieces of it in new free programs, and that you **know you can do** these things.
- you have certain **responsibilities** if you distribute copies of the software, or if you modify it: **respect the freedom of others**.

Open source software vs. free software

Ethical difference:

- “free software” – accent on freedom
- “open source software” – accent on practical part

Usage

- “free software” – programmers / developers
- “open source” – companies, business

NO free software that is not open source

In theory, can be open source and not freeware (in practice, no)

“Software should be free” (please read)

- http://www.gnu.org/philosophy/shouldbefree.html

Organization for Ethical Source

- Dec 2020
- Coraline Ada Ehmke
- software freedom must always be in service of human freedom
- Goals:
  - giving technologists tools and resources to ensure that their work is being used for social good and to minimize harm
  - promote fair, ethical, and pro-social outcomes for those who contribute to, or are affected by, open source technologies
- Hippocratic license – debatable, non open source

- https://www.escrowlondon.com/news/ethics-of-open-source-software-licensing/

Cases

Case 1: Change of license conditions

- Company X owns a software product which is very popular: purchase a one-time license to use the product
- X decides to change the business model, changing to a subscription based license; abrupt, without clear communication to users

? Which are the ethical concerns?

- User trust violation
- Accesibility and affordability
- Vendor lock-in

Case 2:

- University X is partnering with company Y to provide access for student to a specialized software (for courses and projects).
- Several students re-distribute the software to others who were not part of the registered course. This generates a violation of license in regards to authorized distribution

? Which are the ethical concerns?

- Violation of license conditions
- Academic integrity breach: students with improper access gained an unfair advantage
- University accountability
- **Solutions**

- Clear rules for software usage
- State importance of respecting license terms
- Stricter acceess control